reach of any *ſtated rule*, or *expreſs legal* proviſion: but, if ever they unfortunately happen, the prudence of the times muſt provide new remedies upon new emergencies.

INDEED, it is found by experience, that whenever the unconſtitutional oppreſſions, even of the ſovereign power, advance with gigantic ſtrides and threaten deſolation to a ſtate, mankind will not be reaſoned out of the feelings of humanity; nor will ſacrifice their liberty by a ſcrupulous adherence to thoſe political maxims, which were originally eſtabliſhed to preſerve it. And therefore, though the poſitive laws are ſilent, experience will furniſh us with a very remarkable caſe, wherein nature and reaſon prevailed. When king James the ſecond invaded the fundamental conſtitution of the realm, the convention declared an abdication, whereby the throne was rendered vacant, which induced a new ſettlement of the crown. And ſo far as this precedent leads, and no farther, we may now be allowed to lay down the *law* of redreſs againſt public oppreſſion. If therefore any future prince ſhould endeavour to ſubvert the conſtitution by breaking the original contract between king and people, ſhould violate the fundamental laws, and ſhould withdraw himſelf out of the kingdom; we are now authorized to declare that this conjunction of circumſtances would amount to an abdication, and the throne would be thereby vacant. But it is not for us to ſay, that any one, or two, of theſe ingredients would amount to ſuch a ſituation; for there our precedent would fail us. In theſe therefore, or other circumſtances, which a fertile imagination may furniſh, ſince both law and hiſtory are ſilent, it becomes us to be ſilent too; leaving to future generations, whenever neceſſity and the ſafety of the whole ſhall require it, the exertion of thoſe inherent (though latent) powers of ſociety, which no climate, no time, no conſtitution, no contract, can ever deſtroy or diminiſh.

II. BESIDES the attribute of ſovereignty, the law alſo aſcribes to the king, in his political capacity, abſolute *perfection*. The king can do no wrong. Which antient and fundamental maxim